

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Amanda Field	Team: Squad #14	CCRB Case #: 201910590	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 11/26/2019 11:40 PM	Location of Incident: 44th Precinct Stationhouse	Precinct: 44	18 Mo. SOL 5/26/2021	EO SOL 1/10/2022	
Date/Time CV Reported Tue, 11/26/2019 11:50 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/10/2019 8:34 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Felix Acosta	04120	939841	044 PCT
2. POM Joseph Saladino	08982	966324	044 PCT
3. An Officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Todd Jacoby	31546	932819	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Felix Acosta	Abuse: Sergeant Felix Acosta threatened to arrest § 87(2)(b)	
B.SGT Felix Acosta	Force: Sergeant Felix Acosta used physical force against § 87(2)(b)	
C.POM Joseph Saladino	Force: Officer Joseph Saladino used physical force against § 87(2)(b)	
D. An Officer	Discourtesy: An officer acted discourteously toward § 87(2)(b)	

Case Summary

On November 26, 2019, § 87(2)(b) filed this complaint by phone to IAB, which was received by the CCRB on December 10, 2019.

On November 26, 2019, at approximately 11:40 PM, § 87(2)(b) went to the 44th Precinct stationhouse in the Bronx, with § 87(2)(b) her § 87(2)(b)-old daughter, to file a complaint against the manager of their apartment building for entering their apartment without their consent. § 87(2)(b) and § 87(2)(b) stood in the civilian waiting area of the stationhouse and waited to speak to an officer to file their complaint.

Police Officer Todd Jacoby approached § 87(2)(b) and § 87(2)(b) heard their complaint and told them that they needed to file their complaint with housing court. § 87(2)(b) asked to speak to PO Jacoby's supervisor. Sergeant Felix Acosta approached § 87(2)(b) and § 87(2)(b) and reiterated to them that they needed to file their complaint with housing court. Sgt. Acosta allegedly threatened to arrest § 87(2)(b) (**Allegation A: Abuse of Authority, § 87(2)(g)**).

Sgt. Acosta grabbed § 87(2)(b) on her left shoulder, pulled § 87(2)(b) from where she was standing in the civilian waiting area to the stationhouse entrance and pushed her out the door, ejecting her from the stationhouse (**Allegation B: Force, § 87(2)(g)**). Police Officer Joseph Saladino assisted Sgt. Acosta in his action to remove § 87(2)(b) from the stationhouse (**Allegation C: Force, § 87(2)(g)**).

An unidentified officer allegedly threw § 87(2)(b) paper bag containing a burrito out the stationhouse entrance and onto the sidewalk next § 87(2)(b) feet after she had been ejected from the stationhouse (**Allegation D: Discourtesy, § 87(2)(g)**).

The investigation obtained body-worn camera video from PO Jacoby (**Board Review 01**) and PO Saladino (**Board Review 02**).

Neither § 87(2)(b) or § 87(2)(b) was arrested nor given a summons as a result of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Felix Acosta threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) and § 87(2)(b) went to the 44th Precinct stationhouse to file a complaint against the manager of their apartment building. It is also undisputed that PO Jacoby and Sgt. Acosta told § 87(2)(b) and § 87(2)(b) that their complaint was a housing matter and not a police matter. It is further undisputed that § 87(2)(b) became upset and remained in the stationhouse to argue with Sgt. Acosta after he told her that her complaint was not a police matter.

§ 87(2)(b) stated that after officers had informed her twice that her complaint was a housing court issue and not a police matter, she told Sgt. Acosta that she had a recording that she wanted to show him on her phone. Sgt. Acosta allegedly responded, "If you take your phone out, I'm going to arrest you." (**Board Review 03**)

§ 87(2)(b) stated that after officers had explained that their complaint was a housing matter and not a police matter, Sgt. Acosta told § 87(2)(b) that she needed to leave the stationhouse, and if she did not comply, she could be arrested. **(Board Review 04)**

NYS Penal Code 140.50: A person is guilty of trespass when she knowingly enters or remains unlawfully in or upon premises **(Board Review 05)**.

§ 87(2)(g)

Allegation (B) Force: Sergeant Felix Acosta used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Joseph Saladino used physical force against § 87(2)(b)

It is undisputed that Sgt. Acosta asked § 87(2)(b) multiple times to leave the stationhouse. It is also undisputed that Sgt. Acosta and PO Saladino physically ejected § 87(2)(b) from the stationhouse.

Between VLC timestamp 00:20 and 00:35, PO Saladino's BWC video shows Sgt. Acosta walking towards § 87(2)(b) and gesturing for her to leave. § 87(2)(b) puts her hands up and does not move. Sgt. Acosta then grabs § 87(2)(b) by her shoulder, and with the help of PO Saladino, places his hand on her back and pushes her outside.

On December 19, 2019, a request for a Threat, Resistance or Injury report yielded negative results **(Board Review 06)**.

NYPD Patrol Guide 221-01 The reasonableness of the use of force is based upon the totality of the circumstances known by the MOS at the time of the use of force including, but not limited to, the nature and severity of the crime, actions taken by the subject, number of subjects in comparison with MOS. **(Board Review 07)**

§ 87(2)(g)

Allegation (D) Discourtesy: An officer acted discourteously toward § 87(2)(b)

§ 87(2)(b) alleged that an officer threw her paper bag with her burrito inside onto the sidewalk next to her after she had been forcibly removed from the stationhouse.

Sgt. Acosta stated that he did not take this action nor observe any other officer perform this action **(Board Review 08)**. PO Saladino stated that he did not take this action nor observe any other

officer take this action (**Board Review 09**).

In PO Saladino's body-worn camera video, between VLC timestamp 00:20 and 00:35, § 87(2)(b) is seen standing in the civilian waiting area, but no paper bag is visible next to or near her (**Board Review 10**). This allegation was not captured by any of the body-worn camera video obtained by the investigation, as the footage ends when § 87(2)(b) is ejected from the stationhouse. There is no additional video evidence in this case.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 11**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 12**).
- Sgt. Acosta has been a member of service for 14 years and has been a subject in two other CCRB complaints and six other allegations of misconduct, one of which was substantiated.
 - 201014101 involved a substantiated allegation of force against Sgt. Acosta. The Board recommended charges and the NYPD imposed no disciplinary action.
 - § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) declined to mediate this complaint.
- As of May 27, 2020, the NYC Officer of the Comptroller has no record of Notice of Claim being filed with regards to this complaint (**Board Review 13**).

- § 87(2)(b)
- § 87(2)(b)

Squad No.: 14

Investigator: Amanda Field Investigator Amanda Field 12/29/2020
Signature Print Title & Name Date

CCRB Case # 201910590

Squad Leader: Cassandra Fenkel IM Cassandra Fenkel 12/30/2020
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date